

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KRIZZIA GARCIA,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ANTHONY
ASSENT, Tax # 950029, SERGEANT JASON STOCKER,
Tax # 933389, DETECTIVE RICARDO MANTILLA, Tax
942118, POLICE OFFICER PAYANO,
UNDERCOVER POLICE OFFICER #376 and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
March 14, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Anthony Assent, Tax # 949162, Narcotics Borough Manhattan South,
Sergeant Jason Stocker, Tax # 933389
Detective Ricardo Mantilla, Tax # 9421189, Narcotics Borough Manhattan South
Police Officer Payano
Undercover Police Officer #376, Narcotics Borough Manhattan South

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KRIZZIA GARCIA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE ANTHONY
ASSENT, Tax # 950029, SERGEANT JASON STOCKER,
Tax # 933389, DETECTIVE RICARDO MANTILLA, Tax
942118, POLICE OFFICER PAYANO,
UNDERCOVER POLICE OFFICER #376 and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff KRIZZIA GARCIA, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about July 12, 2017 at approximately 5:30 pm plaintiff was lawfully present inside of her apartment located at 210 Eldridge Street, New York, New York when defendants approached plaintiff, unlawfully stopped, questioned, frisked, searched, unlawfully handcuffed and falsely arrested/ imprisoned, assaulted and battered plaintiff and subjected plaintiff to the use of excessive force, without probable cause or any legal justification. At no time relevant herein did plaintiff commit a crime or violate the law in any manner and the officers lacked an objective factual basis to believe plaintiff committed a crime. The officers falsely alleged that plaintiff sold marijuana to an undercover officer not long before she was arrested. However, plaintiff was inside of her apartment during the time period that the Undercover Officer allegedly purchased marijuana. Plaintiff was unlawfully detained at the PSA 4 Precinct and was then transported to New York County Central Booking whereat the unlawful detention continued. The officers denied plaintiff the right to due process/ fair trial and maliciously initiated a criminal prosecution against plaintiff by falsifying allegations against her that she sold marijuana to an undercover police officer and by signing a criminal court complaint and a supporting deposition containing the false allegations against plaintiff. Plaintiff was arraigned in New York County Criminal Court on July

13, 2017, approximately 28 hours after she was initially arrested by the officers and charged with crimes she did not commit and for which there was not probable cause to accuse her of committing, and was then released on her own recognizance. Plaintiff was required to make three additional court appearances and on November 21, 2017 the Court dismissed and sealed all charges brought against plaintiff and the criminal prosecution terminated in plaintiff's favor. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully entered apartment, searched her, confined her, falsely arrested and imprisoned her, assaulted and battered her, subjected her to the use of excessive force, denied her the right to due process/ right to a fair trial, and maliciously prosecuted her in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law of the State of New York.

PARTIES

1. Plaintiff KRIZZIA GARCIA is and was at all times relevant herein a resident of the State of New York.

2. Defendant DETECTIVE ANTHONY ASSENT, Tax # 950029, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

3. Defendant DETECTIVE ANTHONY ASSENT, Tax # 950029, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South command.

4. Defendant DETECTIVE ANTHONY ASSENT, Tax # 950029, is being sued in his individual and official capacity.

5. Defendant SERGEANT JASON STOCKER, Tax # 933389, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Defendant SERGEANT JASON STOCKER, Tax # 933389, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South command.

7. Defendant SERGEANT JASON STOCKER, Tax # 933389, is being sued in his individual and official capacity.

8. Defendant DETECTIVE RICARDO MANTILLA, Tax # 942118, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. Defendant DETECTIVE RICARDO MANTILLA, Tax # 942118, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South command.

10. Defendant DETECTIVE RICARDO MANTILLA, Tax # 942118, is being sued in his individual and official capacity.

11. Defendant POLICE OFFICER PAYANO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

12. Defendant POLICE OFFICER PAYANO, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South command.

13. Defendant POLICE OFFICER PAYANO, is being sued in his individual and official capacity.

14. Defendant UNDERCOVER POLICE OFFICER #376, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

15. Defendant UNDERCOVER POLICE OFFICER #376, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South command.

16. Defendant UNDERCOVER POLICE OFFICER #376, is being sued in his individual and official capacity.

17. Defendants New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

18. Defendants New York City Police Officers John Does #1-10 are being sued in their individual and official capacities.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

20. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

23. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about March 16, 2018.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. By way of background, on July 12, 2017, in accordance with her normal schedule plaintiff worked the entire day and returned home to her apartment at approximately 4:30 pm.

28. Plaintiff was on the telephone with her friend from Texas the entire time from when she returned home from work at 4:30 pm on July 12, 2017 until she was arrested by the police officers at approximately 5:00 pm on July 12, 2017.

29. . Shortly before 5:00 pm on July 12, 2017 plaintiff's Krizzia Garcia's bell in her apartment rang because a package from Amazon was being delivered to her and the delivery person was downstairs at the front door to the building.

30. Plaintiff walked downstairs and opened the front door to the building and accepted the packages from Amazon.

31. Plaintiff made two trips to downstairs from her apartment to the front door of the building to pick the packages up because she could not carry them all at once.

32. At approximately 5:00 pm on July 12, 2017 plaintiff was exiting her apartment to place the empty Amazon boxes in the trash, and plaintiff was met by a man in the hallway outside of her apartment who was dressed in civilian clothing and who asked plaintiff whether she needed assistance with the boxes.

33. Plaintiff told the man that she could handle the boxes herself.

34. Plaintiff was still standing in the doorway of her apartment pushing the boxes out of her apartment when a second man dressed in civilian clothing came down the building

stairwell, squeezed past the man that had offered to help plaintiff with the boxes and grabbed plaintiff's arm as he walked by her.

35. Plaintiff became frightened when the man grabbed her arm because she thought he was robbing her.

36. Plaintiff screamed on the top of her lungs, "What are you doing? Get off of me!"

37. Plaintiff attempted to move away from them men and further into her apartment and she tried to close the front door of her apartment.

38. However, the two men continued to grab plaintiff and forcefully pull her out of her apartment.

39. Plaintiff remained on the phone with her friend from Texas and her friend heard the entire interaction between plaintiff and the men.

40. Plaintiff's[friend from Texas called 911 to get help for plaintiff because she believed plaintiff was being robbed.

41. Plaintiff ultimately learned that the two men dressed in civilian clothing were police officers.

42. The two men entered the foyer of plaintiff's apartment, plaintiff struggled to get away from them and attempted to push them out of her apartment for five or six minutes

43. . After approximately 5-6 minutes, the two men forcefully pulled plaintiff out of her apartment, threw her against the wall and handcuffed plaintiff.

44. Plaintiff realized the men were police officers when they handcuffed her.

45. The defendant police officers proceeded to unlawfully search plaintiff in the hallway of her apartment building and touched plaintiff's breasts, vagina, buttocks, and legs in an inappropriate manner while they searched her.

46. . Plaintiff asked defendants whether they could have a female officer search her, but they ignored her request and continued to search plaintiff in an extremely rough and sexually inappropriate manner.

47. Defendants unlawfully used the sides of their hands to feel inside of the cheeks of plaintiff's buttocks, through her clothing.

48. Defendants did not recover any illegal drugs, weapons, or contraband pursuant to the search of plaintiff.

49. The unlawful search of plaintiff conducted by the defendants caused plaintiff to suffer anxiety and extreme emotional distress.

50. Plaintiff was falsely arrested by the defendants without probable cause to arrest plaintiff for committing a crime or violating the law.

51. Defendants then brought plaintiff out of her building in handcuffs.

52. Plaintiff told the defendants that her son attended school on the corner of her block and needed to be picked up from school by plaintiff at 5:45 pm.

53. The defendants contacted the father of plaintiff's son, advised him that plaintiff was arrested and asked him to pick their son up from school.

54. The father of plaintiff's children agreed to pick their son up from school.

55. However, the father of plaintiff's children also filed a petition in New York County Family Court to obtain full custody of their son after he learned that plaintiff had been arrested.

56. Defendants' conduct in falsely arresting and maliciously prosecuting plaintiff caused plaintiff to temporarily lose custody of her 4 year old son which caused her to suffer extreme emotional distress.

57. In light of the fact that plaintiff was arrested and was being criminally prosecuted the Family Court granted the petition filed by plaintiff's child's father, over the objections of plaintiff.

58. The father of plaintiff's child was granted residential Custody of their child from September 19, 2017 through November 27, 2017.

59. During that period of time plaintiff was only permitted to have custody of her son on weekends.

60. Plaintiff raised her son and had full custody of him throughout his entire life prior to being falsely arrested by defendants in this case.

61. Additionally, as a consequence of being falsely arrested by defendants for allegedly selling marijuana to an undercover police officer the Family Court required plaintiff to undergo drug testing if she wanted to regain custody of her child.

62. Plaintiff passed all of the drug tests and after the underlying criminal case was dismissed on November 21, 2017 the Family Court was determined that plaintiff was able to properly care for her son. Therefore after the criminal charges were dismissed plaintiff was awarded residential custody of her son on November 27, 2017.

63. Plaintiff was separated from her son for more than 2 months because the Family Court Order the change in her son's custody status as a direct and proximate cause of the fact that plaintiff was falsely arrested and maliciously prosecuted by the defendants in this case.

64. The experience of being separated from her son was emotionally traumatic for plaintiff and caused her to suffer from extreme emotional distress throughout that two month period of time.

65. Plaintiff was transported by defendants against her will, from her home to the PSA4 Precinct whereat plaintiff was unlawfully, searched, fingerprinted, photographed, and detained in a holding cell for several hours.

66. Thereafter, plaintiff was transported to New York County Central Booking whereat the unlawful detention continued.

67. Plaintiff was unlawfully detained for approximately 28 hours before she was arraigned in New York County Criminal Court on July 13, 2017 at approximately 9:00 PM.

68. At arraignment plaintiff was charged with crimes she did not commit and that defendants lacked any objective evidence to accuse her of committing, including but not limited to Criminal Sale of Marijuana in the Fourth Degree (PL 221.40) and Unlawful Possession of Marijuana (PL 221.05).

69. Defendants wholly fabricated the allegations contained in the criminal court complaint against plaintiff.

70. Defendants falsely denied that they ever entered plaintiff's building or her apartment because they knew they lacked a legal basis to enter her apartment.

71. Instead the defendants falsified allegations that plaintiff sold two Ziploc bags of marijuana to an Undercover Police Officer in front of her building located at 210 Eldridge Street, New York, New York.

72. Contrary to defendants' falsified allegations, plaintiff was not outside of her apartment building at the time of her arrest and she did not sell marijuana to an undercover police officer in front of her apartment building.

73. Plaintiff Krizzia Garcia was released on her own recognizance at arraignment and she was required to make 3 additional appearances in New York County Criminal Court.

74. . All criminal charges brought against plaintiff were dismissed and sealed in their entirety on November 21, 2017 after plaintiff endured a criminal prosecution against her that lasted over 4 months.

75. Defendants unlawfully seized plaintiff's cell phone at the time of plaintiff's arrest and the cell phone was not returned to plaintiff until November 22, 2017.

76. The unlawful seizure of plaintiff's cell phone by defendants caused significant disruption to plaintiff's business because all of her business contacts were stored in her cell phone. Plaintiff suffered from extreme anxiety and emotional distress caused by the unlawful seizure of her phone because she did not have a way to contact many of the clients and customers from her business.

77. The defendants used excessive force against plaintiff and assaulted and battered plaintiff as they aggressively pulling her out of her apartment and placing her under arrest, and the defendants lacked any legal basis to take such action.

78. The excessive force used by the defendants against plaintiff caused plaintiff to suffer from severe deep tissue bruising to her abdomen and arms and lacerations on her biceps and her arms.

79. Plaintiff suffered from extreme pain to her abdomen caused by the excessive force used by the defendants.

80. Plaintiff sought medical treatment for her injuries at Northwell Heath on July 14, 2017, the day after she was released from custody.

81. Plaintiff complained of severe lower abdomen pain caused when one of the officers punched her with a closed fist in the abdomen as he was arresting her.

82. Additionally plaintiff complained that her arms were in pain and she could barely move them.

83. Plaintiff was given a CAT scan of her lower abdomen at the hospital which revealed that Ms. Garcia's abdomen was infected.

84. Additionally, plaintiff suffered from severe dizziness.

85. The medical records indicate that the injuries to plaintiff's abdomen were consistent with trauma.

86. Plaintiff was given 2 milligrams of morphine and 4 milligrams of ondunostron, which were injected into her at the hospital

87. Plaintiff also suffered from nausea, pain and vomiting caused by the excessive force used against her by the officers.

88. Plaintiff was diagnosed with a kidney infection, severe bruising to her arms and abdomen and an Iliac Crest Contusion (severe contusion of hip).

89. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the officers have probable cause to believe she committed a crime or violated the law in any way.

90. Those defendants that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. .

91. The unlawful entry into plaintiff's home by defendants, the false arrest/imprisonment, denial of the right to due process./ right to a fair trial, the assault and battery, the excessive force used by defendants against plaintiff, and the malicious prosecution of plaintiff, by the individually named defendants caused plaintiff to sustain physical, psychological, economic and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff's home to be unlawfully entered and caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied the right to due process/ the right to a fair trial and maliciously prosecuted without probable cause and in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of plaintiff's right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

100. The illegal approach, pursuit, stop and search and entry into plaintiff's apartment employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

101. Defendants lacked probable cause to search plaintiff or to enter plaintiff's apartment.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

106. Defendants commenced and continued a criminal proceeding against plaintiff.

107. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

108. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

109. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

110. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

111. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

113. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

115. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

116. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

117. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

118. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

121. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

122. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

123. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

124. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

125. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

126. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligence

128. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 127 with the same force and effect as if more fully set forth at length herein.

129. Defendants owed a duty of care to plaintiff.

Plaintiff's injuries were caused defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior by using unreasonable force against plaintiff to place her under arrest and unlawfully remove her from her apartment.

130. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

131. All of the foregoing occurred without any fault or provocation by plaintiff.

132. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

133. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

134. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

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NINTH CAUSE OF ACTION**Assault**

135. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 134 with the same force and effect as if more fully set forth at length herein.

136. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

137. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

138. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION**Battery**

139. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 138 with the same force and effect as if more fully set forth at length herein.

140. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

141. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

142. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

143. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 142 with the same force and effect as if more fully set forth at length herein.

144. The use of excessive force by defendants by dragging plaintiff from her apartment, throwing her against a wall and punching her plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

145. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

TWELVTH CAUSE OF ACTION**Failure to Intervene**

146. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 145 with the same force and effect as if more fully set forth at length herein.

147. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

148. Defendants failed to intervene to prevent the unlawful conduct described herein.

149. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

150. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

151. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Krizzia Garcia. demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 14, 2019

By: _____/s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 14, 2019

/s/
DAVID M. HAZAN